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LINE 1

22-CIV-04123

MARY HURLBUT VS. WILLIAM B HURLBUT, ET AL.

MARY HURLBUT
WILLIAM B HURLBUTMARC L SHEA
DARIN T JUDD

MOTION FOR LEAVE TO FILE AND SERVE THIRD AMENDED ANSWER TO CROSS-COMPLAINT

TENTATIVE RULING:

The court GRANTS plaintiff/cross-defendant Mary Hurlbut's "Motion for Leave to File Third-Amended Answer to Cross-Complaint," filed June 30, 2026, which seeks leave of court to file a proposed Third-Amended Answer to William Hurlbut's and Erica Goldman's March 9, 2023 Cross-Complaint. (Code Civ. Proc. §§ 473(a)(1); 576.)

BACKGROUND

This family dispute concerns a home in Woodside, CA (the Property). As alleged, plaintiff Mary Hurlbut (Plaintiff) shares ownership of the home with her father, William Hurlbut (William) and his wife Erica Goldman (Erica). Plaintiff's Complaint seek a partition of the Property and an accounting.

Plaintiff filed this lawsuit in October 2022, almost four years ago. On March 9, 2023, over three and-one half years ago, defendants William and Erica filed a cross-complaint against Plaintiff, alleging that the parties (plaintiff, William, and Erica) purchased the property in 2010 and currently hold ownership as tenants-in-common, with plaintiff owning a 1/3 interest and William and Erica holding a 2/3 interest. The Cross-Complaint alleges that the parties also *agreed to share the costs of all improvements/renovations, and expenses*, in proportion to their respective ownership interests. The cross-complaint further alleges that in 2012, Plaintiff signed a promissory note in the amount of \$353,200 to secure plaintiff's reimbursement, to William, for plaintiff's portion of the improvement/renovation costs and expenses. The cross-complaint alleges that Plaintiff currently owes over \$400,000 for Plaintiff's share of improvements/renovation costs and other expenses, which William and Erica contend should be paid by Plaintiff either from separate funds, or from Plaintiff's share of the sales proceeds, should the Property be sold.

On March 22, 2023, Plaintiff filed her original answer to the cross-complaint, asserting affirmative defenses of statute of limitations, laches, failure to mitigate, and estoppel.

On January 13, 2025, this case was set to start trial but the trial date was vacated in late 2024. There was a judicial reassignment, the newly assigned judge was challenged and the case was assigned to the Hon. Nancy L. Fineman on December 31, 2024. On January 7, 2025, this court held a trial setting conference and wanted to have a trial as quickly as possible since the case had already been set for trial. According to the minutes, "Plaintiff is ready for a trial date."

Defendants are not ready for a trial date as Judge Greenberg [the previous judge] at the 12/19/2024 hearing on Plaintiff's motion to amend answer re-opened discovery on the two new affirmative defenses which are Equitable Estoppel and Laches." (Min. of Jan. 7, 2025.) The court did not set a trial date due to the need to conduct more discovery.

On August 1, 2025, Plaintiff filed her amended answer to the cross-complaint, asserting a new code reference to an additional statute of limitations defense. On June 10, 2026, Plaintiff filed a second amended answer to the cross-complaint, asserting an unclean hands defense.

Discovery has now closed. A jury trial is scheduled to begin January 20, 2027.

On June 30, 2026, twenty days after filing the second amended answer to the cross-complaint, Plaintiff filed this motion, seeking leave to file a third-amended Answer to the cross-complaint, for the purpose of adding new allegations pertaining to the execution of the 2012 Promissory Note, and to assert several new affirmative defenses relating to the 2012 Promissory Note, including new defenses that the Promissory Note was procured via fraud, via undue influence, by mutual mistake, by unilateral mistake, via breach of fiduciary duty, and via breach of the implied covenant of good faith and fair dealing. Plaintiff also seeks to add affirmative defenses that the Note is unenforceable due to lack of consideration, due to waiver, due to "payment/offset," and because Cross-Complainant breached the Note. (June 30, 2026 Shea Decl., Ex. B, C.)

PLAINTIFF HAS NOT EXPLAINED WHEN THE FACTS GIVING RISE TO THE PROPOSED AMENDMENTS WERE DISCOVERED, NOR WHY PLAINTIFF DID NOT REQUEST LEAVE TO AMEND MUCH EARLIER

California courts exercise a liberal policy with respect to amending pleadings. (Code Civ. Proc., §§ 473, subd. (a); 576.) But that policy is not absolute, particularly where, as here, the party seeking leave to amend has not complied with the California Rules of Court, Rules 3.1324(b)(3) and (4), which state:

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) *When the facts giving rise to the amended allegations were discovered; and*
- (4) *The reasons why the request for amendment was not made earlier.* (emphasis added.)

Plaintiff has not complied with Rule 3.1324(b)(3) or (4). Plaintiff filed her initial answer on March 9, 2023. Plaintiff filed this motion on June 30, 2026, *after discovery had closed* and it is being heard just three months before the January 2027 *continued* trial date. Plaintiff offers no explanation for waiting until June 2026 to seek leave of court to assert a litany of new affirmative defenses, all of which are based upon a 2012 promissory note, and a transaction that has been at issue in the Cross-Complaint since March 2023.

Plaintiff's moving papers offer no explanation of when Plaintiff learned of the relevant facts, Nor why Plaintiff did not assert these proposed new allegations and affirmative defenses three years ago. When Plaintiff filed her initial answer to the cross-complaint in early 2023, Plaintiff could have asserted all of these affirmative defenses, but did not. And thereafter, Plaintiff amended her Answer to the Cross-Complaint *twice*, yet still did not assert these proposed new affirmative defenses. Plaintiff's only explanation for this long delay appears for the first time in the September 15, 2026 Reply declaration (Shea), in which Plaintiff's counsel states:

In my opinion, Mary's prior denial of the allegations of the Cross-complaint and other affirmative defenses previously asserted (including laches, estoppel, failure to obtain Mary's informed consent, and unclean hands) preserved for Mary her rights to relevant jury instructions in this matter. However, in May 2026 I reviewed my file to prepare for trial. During my review, it occurred to me that opposing counsel might disagree with my position that Mary would be entitled to jury instructions on relevant issues, so I decided to bring this motion to amend to make sure Mary's rights to relevant jury instructions based on the facts and circumstances of this case are fully preserved.

(Sept. 15, 2026 Shea Decl., ¶ 6.)

Plaintiff's Reply brief argues that the proposed new affirmative defenses have already been the subject of discovery, and therefore, that Defendants/Cross-Complainants would not be prejudiced by granting leave to amend. (See Sept. 15, 2026 Shea Decl. [attaching Plaintiff's discovery responses].)

THE MOTION FOR LEAVE TO AMEND THOUGH IS GRANTED

Despite this failure to provide the required information about when Plaintiff first learned of these new facts, the court follows the policy of great liberality of pleadings. As our Supreme Court has said more than one hundred years ago, "In the matter of amending pleadings, this court has always counseled and sanctioned great liberality. No discussion upon so plain a proposition is necessary." (*Norton v. Bassett* (1910) 158 Cal. 425, 426–427.) This liberality is "particularly applicable to answers." (*Hyman v. Tarplee* (1944) 64 Cal.App.2d 805, 813–814; see *Coons v. Thompson* (1946) 75 Cal.App.2d 687, 690 [overruling demurrer to third amended answer].) Deny leave to amend permanently deprives the defendant (in this case cross-defendant] of a defense. (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.)

*THE COURT RE-OPENS DISCOVERY WITH PLAINTIFF
PAYING ALL ATTORNEYS' FEES AND COSTS*

The court is cognizant of the increased work that William and Erica and other parties may have to do, including a change in trial strategy. However, that prejudice is not the type of prejudice that the law recognizes to allow denial of the amendment. The court therefore reopens discovery. Plaintiff is to make herself available for deposition on five-day's notice, respond to written discovery within ten days after service of the requests, and produce any new documents within

twenty days after service of the request. Plaintiff is to pay for the attorneys' fees and costs, including expediated deposition transcripts and experts, for all the additional work any party expends on this extra discovery. Plaintiff shall pay within ten days of receiving an invoice from counsel. If there is any dispute regarding the reasonableness of the fees and costs, the parties shall schedule an informal discovery conference before the civil commissioner before bringing a motion. If Plaintiff seeks additional discovery, the statutory rules for response apply.

CONCLUSION

Plaintiff is to file her amended answer within five court days of notice of entry of order.

The court notes that Plaintiff has also added new Doe defendants and that at least one has signed a notice and acknowledgment of receipt of summons and complaint. The court does not know if the newly added defendants will be filing any motions, e.g. pursuant to Code of Civil Procedure section 583.210 or to continue the trial, but the court warns the parties about Department 4's impacted calendar and the looming five-year deadline so that they can meet-and-confer regarding the trial, which is still scheduled for January 20, 2027.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for William and Erica shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 2

23-CIV-06074

SUNG SIM PARK, ET AL. VS. LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION, INC.,
ET AL.

SUNG SIM PARK

LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION, INC.

SEAN P. RILEY

SUZIE TAGLIERE

AMENDED MOTION OF DEFENDANTS LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION AND GARY ERNST FOR
SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

TENTATIVE RULING:

The Motion for Summary Judgment or, in the alternative, Summary Adjudication by Defendants Lynda Lake Gardens Homeowners Association (“Association”) and Gary Ernst (“Ernst”) (collectively “Defendants”) to the First Amended Complaint (“FAC”), which is supplemented by the First Supplemental Complaint (“FSC”), by Plaintiffs Sung Sim Park (“Park”) and Matthew Moskewicz (“Moskewicz”) (collectively “Plaintiffs”), is DENIED as to summary judgment, and DENIED as to summary adjudication of the First through Sixth Cause of Action and the issue of damages.

1. Background

In 2020, Plaintiffs purchased property located at 3875 Jefferson Avenue in Redwood City (“Plaintiffs’ property”), which is part of the Lynda Lake Gardens development (“LLG”). This action concerns in part Plaintiffs’ access to the central lake, Lynda Lake, in LLG and its surrounding pathway easements. Lynda Lake is located on its own lot known as Lot A. Defendant Lynda Lake Gardens Homeowners Association, Inc. (“Association”), through its Board, governs LLG.

Plaintiffs’ property is next to properties owned by Defendant Gary Ernst (“Ernst”), which are located at 3865 Jefferson Avenue and 937 Lakeview. Plaintiffs claim they hold an easement that runs across these properties to allow them to access the lake, which is often blocked and impeded by parked cars belonging to Ernst or his tenants. The easement and other portions of Lot A are also alleged to have impediments that make it difficult for Plaintiffs to use. Park suffers from polio, which renders traversing on uneven and irregular surfaces difficult. Plaintiffs allege that due to Park’s disability, they requested maintenance and repairs to the portions of the pathway easements and Lot A pursuant to the Second Amendment to Restated Declaration of Covenants, Conditions and Restrictions (“CC&Rs”) in operation at that time, but the Association claimed it did not have any common areas per Davis-Stirling, FEHA, FHAA or other law and that pathway easement improvements may only occur with the permission of the lot owner upon which a pathway easement crosses at Plaintiffs’ cost.
